

(48)

Tentative Ruling

Re: **Reed v. California Highway Patrol**
Superior Court Case No. 25CECG04900

Hearing Date: August 18, 2026 (Dept. 503)

Motion: Defendant's Demurrer to the Complaint

Tentative Ruling:

To sustain defendant California Highway Patrol's demurrer to the Complaint, without leave to amend. (Code Civ. Proc., § 430.10, subd. (e).) The prevailing party is directed to submit to this court, within seven days of service of the minute order, a proposed judgment dismissing the action as to the demurring defendant.

Explanation:

Government Code section 815 provides that "[e]xcept as otherwise provided by statute...[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." In other words, "all government tort liability must be based on statute." (*County of San Bernardino v. Superior Court* (2022) 77 Cal.App.5th 1100, 1107 [emphasis added]; Gov. Code, § 810, et seq.) "[I]n the absence of some constitutional requirement, public entities may be liable only if a statute declares them to be liable." (*Id.* at p. 1108 [emphasis in original].)

Defendant State of California, by and through the California Highway Patrol ("Defendant") demurs on the basis that the sole cause of action plead in Plaintiff's complaint is barred by the Government Claims Act. Plaintiff's Complaint contains a single cause of action for general negligence against Defendant. Government Code section 815 bars common law tort liability for public entities. (*Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 899.) Thus, Plaintiff's Complaint fails to state a cause of action against Defendant. An opposition was not filed in response. As such, the demurrer is sustained, without leave to amend.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/14/2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Helena Agri-Enterprises, LLC v. E & S Farming, LLC et al.***
Superior Court Case No. 25CECG02733

Hearing Date: August 18, 2026 (Dept. 503)

Motion: By Plaintiff to Enforce Settlement

Tentative Ruling:

To grant. To approve fees and costs in the combined amount of \$990.00 as sought. To sign the proposed judgment lodged on June 29, 2026.

Explanation:

Code of Civil Procedure Section 664.6 provides as follows: "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court . . . for settlement of the case . . . the court, upon motion, may enter judgment pursuant to the terms of the settlement." It also provides that the parties may request that the court "retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc. § 664.6.) Due to the summary nature of the statute authorizing judgment to enforce a settlement agreement, strict compliance with its requirements is prerequisite to invoking the power of the court to impose a settlement agreement. (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 Cal.App.4th 974, 984.)

Here, plaintiff Helena Agri-Enterprises, LLC ("Plaintiff") submits a writing, signed by the parties, made outside the presence of the court. Further, the writing reflects that this court would retain jurisdiction under section 664.6 to enforce the writing. (Luzania Decl., ¶ 4, and Ex. A thereto.) The agreement contemplated scheduled payments totaling \$330,989.41 to settle the claims of this action. Plaintiff submits that defendant E & S Farming, LLC has made payments but has not complied with the terms of the settlement as of April 28, 2026. (*Id.*, ¶¶ 4, 5.) Plaintiff seeks entry of judgment as to the outstanding balance of \$301,863.90 as well as \$60.00 in costs, and \$930.00 in fees, a total of \$302,583.90. No opposition was filed.

Based on the above, the court finds a valid written signed settlement agreement outside of the presence of the court, and judgment will be entered in accordance with the terms of the written settlement agreement. (Code Civ. Proc., § 664.6, subd. (a).)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/17/2026.
(Judge's initials) (Date)